



IP Identifier: Learn to identify and protect your intellectual property

USPTO Advanced IP Identifier Final Report



Copyright

Question 1

Do you create original works of authorship, such as any of the following?

- Advertising materials
- Customer presentations
- Websites
- Videos
- Photographs
- Logos
- Product packaging
- Songs or other music
- Software
- Video games
- Blogs
- Book or short story

Your Response:

Yes

Explanation:

It sounds like you might have a copyright. This form of legal protection for original creative works covers a wide range of subject matter. Virtually every business, large or small, creates materials protected by copyright. Examples include those listed in the above question, as well as others.

Find more information about how to protect copyright on the main website of the [U.S. Copyright Office](#). The link is also provided below at the end of the copyright section.

Question 2

If another company used one of your original creative works without your permission, would it harm your business?

Your Response:

Yes, but I'm not sure how to prevent it.

Explanation:

Since you know that your original creative works have value, you can find more information about how to protect that type of intellectual property on the [U.S. Copyright Office's](#) website.

Question 3

Did you know that you automatically have copyright protection in your original creative work as soon as you write, draw, paint, record, sculpt, or code it?

Your Response:

Yes

Explanation:

Great! You know your copyright basics. Under federal law, copyright exists as soon as you create a new work, as long as the work is both original and “fixed in a tangible medium of expression.”

Original creation simply means you created it yourself without copying and by applying a minimum degree of creativity.

Question 4

Did you know that you are not required to register your copyright with the U.S. Copyright Office?

Your Response:

No

Explanation:

It's true. Federal law does not require you to register your copyright with the U.S. Copyright Office. You can also use the copyright notice (© —along with the year of publication and the name of the owner) without registering. It's a great way to discourage others from using your work without permission.

Question 5

Did you know that registering your copyright with the U.S. Copyright Office provides significant advantages?

Your Response:

Yes

Explanation:

Great! Federal registration makes it easier for you to prove ownership. Also, registration is required if you want to:

- File a copyright infringement case in federal court.
- Record your registration with U.S. Customs and Border Protection to prevent infringing goods from entering the country.
- Claim damages and attorney's fees in a lawsuit and improve your negotiating position.

Question 6

Have you registered your copyright with the U.S. Copyright Office?

Your Response:

No

Explanation:

If you haven't yet federally registered your copyright, please consider it. To learn how, use the resources provided at the end of this section.

Question 7

Do you use anyone else's work when you create brochures, catalogs, presentations, videos, or other materials?

Your Response:

No/Not sure

Explanation:

Even if you don't create materials that use the work of others, it's good to keep in mind that unauthorized use of copyrighted materials that belong to someone else may trigger legal action against you.

For example, let's say you're making a promotional video and want to use a certain piece of music. The piece may contain several copyrights: the writing (music and lyrics) and the recording itself. To avoid legal action, you may need to license all those rights.

Question 8

Do you use the work of others, such as independent contractors, to create your own work, like logos and websites, for example?

Your Response:

No/Not sure

Explanation:

If your logo, website, or other work was created by your employees, no need to worry about obtaining or licensing copyrights. But it's good to make sure the creators are legally your employees.

It's also good to be aware that if you hire a third party, like an independent contractor, to create a logo, design a website, or create some other work, the contractor owns the copyright, unless you and the contractor agree in writing otherwise. If not, you will need the third party's permission for any changes to the creation. You may need permission or even pay royalties to use the creation on updated brochures, new merchandising, and so forth.

Question 9

Did you know that materials you find online may be protected by copyright and therefore are not free for you to use?

Your Response:

Yes

Explanation:

Great! Just because material can be found online or doesn't have a copyright notice on it, doesn't mean it's free to use. The creator of that material often has a copyright on it, so you can't use it without the owner's permission.

Question 10

Do you know how to legally use others' copyrighted materials in your work?

Your Response:

Yes

Explanation:

Great! Using the works of others in your own work can be complicated, so it's important to understand there are different types of permissible uses. These could include:

- Licensing the work
- Using it under the "fair use" doctrine
- Using a work in the "public domain"
- Using works that cannot be copyrighted

To learn more about copyrights and how to register them, visit the [United States Copyright Office website](#). More basic information about copyrights and advanced topics like fair use, work made for hire, and the public domain can be found on the [downloadable Copyright Circulars](#) page.

Question 1

Do you know that simply using a trademark to indicate the source of your products or services can create trademark rights?

Your Response:

Yes

Explanation:

Great! Many people don't realize that trademark rights in the U.S. are based on use. As soon as you begin using a trademark to indicate the source of your products or services, you typically begin to create legal trademark rights.

Common law rights can be incredibly powerful, but are often limited to the geographic area where you're using your trademark. For example, if you're only using your trademark in Texas, your common law rights only exist in that state. Learn more on our [What is a trademark?](#) page.

Question 2

Do you know you can use the TM or SM symbol to let the public know you're using something as your trademark?

Your Response:

Yes

Explanation:

Great! Using the TM or SM symbol with your product or service is an effective way to let consumers and competitors know you're claiming a trademark as yours. Although TM stands for "trademark" (promoting products) and SM stands for "service mark" (promoting services), many people simply use the TM symbol next to their mark regardless of whether they are promoting products or services. Just remember you can only use the ® symbol after federal registration.

Question 3

Do you know you can increase your rights by registering your trademark with the federal government, specifically the USPTO?

Your Response:

Yes

Explanation:

Great! Even though federal registration is not required, it provides many benefits, including trademark protection throughout the U.S. and its territories. It creates a legal presumption that you own the mark, have the right to use it, and can sue in federal court concerning it. Registration also provides the basis for filing for trademark protection in foreign countries. Plus, using the ® symbol may keep others from using a mark confusingly similar to yours.

Learn more on our [Why register your trademark?](#) page.

Question 4

Do you know you can register different versions of your trademark?

Your Response:

Yes

Explanation:

Great! Many people mistakenly assume they can only apply to register one mark, but you can apply to register many different versions of the same mark. It all depends on what your mark looks like, how you use it, and how many applications you want to submit. You can file as many applications as you want, but remember that each version of the mark requires a separate application. You can't put multiple versions in one application.

For example, you might file to protect wording with no stylization or design. The standard character format drawing gives you broad protection. Here you're protecting the wording itself, not what it looks like. That gives you great flexibility in how you use your trademark over the life of your business.

You might file to protect stylized wording alone, a design alone, or a combination of both. The special format drawing protects what the trademark looks like. You can apply to register your mark in color, but registering your mark without color gives you flexibility in the colors you use in your trademark over the life of your business.

Learn more on our [Trademark examples](#) page.

Question 5

Do you know that registration requires you to specifically identify the goods or services you use with the version of your trademark you're applying to register?

Your Response:

Yes

Explanation:

Great! Trademarks never exist on their own, but are always tied to specific goods or services. That's because trademarks indicate the source of those goods or services, otherwise they're not serving as trademarks.

The concept of "goods and services" can be confusing, but remember:

- Goods are products you sell or transport across state lines and bear your trademark.
- Services are activities you provide for others, using your trademark in advertising or carrying out those activities.

Learn more on our [Goods and services](#) page. It includes a link to our Identification of Goods and Services Manual ([ID Manual](#)) that lists acceptable identifications (descriptions) of goods and services you can select from when applying.

Question 6

Do you know that not every mark can be registered?

Your Response:

Yes

Explanation:

Great! Many people assume that registration is as simple as filling out a form. But it actually involves thorough examination of your application by a USPTO trademark examining attorney. If the attorney determines your trademark can't be registered, the attorney will refuse registration. Common refusals include proposed marks that are mere descriptions of goods or services, or marks deemed to be confusingly similar to a previously applied-for or registered mark.

A common reason for refusing to register a mark is that it describes something about, or is the generic name for, the goods or services. This occurs because the mark is not indicating the source of the goods or services, but merely describing something about them, such as a quality, characteristic, or main ingredient. When the mark describes the goods or services, it is not functioning as a trademark.

For example, the words "Creamy Whip" for "whipped topping" would not indicate the source of the goods because they merely describe a feature of the goods. Similarly, the word "Milk" for "dairy-based beverage" would not be a good trademark because it does not indicate the source of the goods. Instead, it is the generic term for the goods, since it tells the purchaser exactly what the goods are.

In choosing your trademark, you should choose a mark that will identify you as the source of the goods or services, not merely explain what they are or something about them. A mark that merely describes something about the goods or services might eventually be registered by providing evidence that it has become recognized in the marketplace as indicating a source or pointing to a brand. However, generic marks (the common name for goods or services) can never be registered as a trademark.

Another common reason for refusing to register a mark is that it is confusingly similar to another mark previously applied for or registered with the USPTO. To make this determination, an examining attorney will search our database to see if your mark has a similar sound, appearance, meaning, or impression to another mark that has previously been applied for or registered with our office, and if the goods and services for which that mark is being used are related to yours.

If you and your competitors are using similar marks for related goods or services, your customers will likely be confused when trying to decide who to do business with. Choosing a mark that uniquely points to you as the source of your goods and services and that distinguishes them from your competitor's goods or services will increase the likelihood of you having a mark that can be registered and legally protected.

Learn more on our [Common problems in applications](#) page.

Question 7

Do you know you can apply to register your trademark, even if you're not using it yet, but intend to do so?

Your Response:

Yes

Explanation:

Great! Federal law allows you to apply to register your mark, even if you're not yet using it at all or using it across state lines, as long as you intend to start using it within three to four years. This is called "intent to use." Many businesses choose this option because it creates an early filing date, putting them in front of any competitors that may later file to register a confusingly similar mark.

You can apply to register your trademark with an intent-to-use basis. You cannot, however, register your mark until you show that you've started using it in interstate commerce to provide your goods or services and you file the proper form. The form requires that you include an example of how you are using the mark (specimen of use) and a filing fee.

Learn more on our [Application filing basis](#) webpage.

Question 8

Do you know that a trademark registration can last forever, as long as you take certain steps?

Your Response:

Yes

Explanation:

Great! Knowing you can maintain your federal registration for as long as you continue to use the mark in interstate commerce and file required maintenance documents helps you in your business plan. Just remember that if you fail to do either, your registration will expire or be canceled. Then you would need to start the application process all over again to seek nationwide protection for your mark.

Learn more on our [Maintaining your federal registration](#) page. For easy access to additional information about trademark basics, check out our [Trademark basics](#) page.

For an overview of the registration process and easy access to all relevant links and resources, download our [Trademark basics registration toolkit](#).

For information about hiring an attorney to assist you (including links to free and reduced-price legal services), visit our [Hiring a U.S.-licensed attorney](#) page.



Question 1

Do any of the products you produce or plan to market have unique design elements you consider important?

Your Response:

Do not know/Not sure

Explanation:

While the products you produce or plan to market may not currently have unique design elements, it is helpful to understand what might be covered by a design patent. It protects the ornamental appearance of the article rather than the functional or utilitarian features. Since a design is manifested in appearance, the subject matter of a design patent application may relate to the configuration or shape of an article, the surface ornamentation applied to an article, or the combination of configuration and surface ornamentation.

A U.S. design patent can be granted for a new, nonobvious, ornamental design for a manufactured article. A design consists of the visual, ornamental characteristics embodied in or applied to that article. The design patent protects only ornamental appearance, not functional features.

Since a design is manifested in appearance, the subject matter of a design patent may relate to configuration or shape, to surface ornamentation, or a combination of the two.

To learn more about design patents, visit [General information concerning patents | USPTO](#) or [Patent process overview | USPTO](#).

Question 2

Is it important to the marketing or sale of your product to protect its appearance, in addition to how it works or is made?

Your Response:

Do not know/Not sure

Explanation:

You indicated you are not sure if there is any value in design patents for your product. Keep in mind that products or articles of manufacture may be protected by multiple types of intellectual property rights.

Consider whether it is important to protect the appearance of your product in addition to how it works or is made. Multiple types of IP rights may be available for your product. If the non-functional design of your product indicates the source of your goods it may also be possible to get trademark protection. In addition, the name of the product, among other factors, can be used as a brand name to distinguish it from other similar products. It can also be protected by a copyright.

To learn more about design patents, visit [General information concerning patents | USPTO](#) or [Patent process overview | USPTO](#).

Question 3

Have you considered all potential design elements of your products that might be eligible for design patent protection?

Your Response:

Yes

Explanation:

Great! It's important to consider all the different elements of your products for protection.

An audit is a comprehensive inventory and analysis of all the product designs an inventor produces. It determines which designs have been patented, which design applications have been filed, and which designs are not yet filed but could be eligible for a patent. In other words, it is the act of analyzing existing patents and candidates for potential patents. An occasional patent design audit helps inventors decide which patents to renew or not renew, or those needing a patent filing.

To learn more about proper subject matter for design patents, visit [Design Patent Application Guide | USPTO](#).

Question 4

Have you ever applied for a design patent at the USPTO?

Your Response:

No/Not sure

Explanation:

Your answer indicates that you may not be familiar with the design patent application filing process. The USPTO has a variety of online resources available to help you learn more about the patent application process.

To learn more about the USPTO's design patent application process and filing, visit [Patent process overview | USPTO](#) or [Design Patent Application Guide | USPTO](#).

Question 5

Do you know what a design claim looks like in a design patent application?

Your Response:

No/Not sure

Explanation:

It is important to understand that unlike a utility patent, a design patent can only contain a single claim. Also distinct from utility claims, which are in written form only, design claims include both drawings and description.

A design patent application may only include a single claim. The claim as shown and described defines the design to be patented in terms of the article in which it is embodied or applied. The description of the article in the claim should be consistent in terminology with the title of the invention. Learn more about design patent claims at [Design Patent Application Guide | USPTO](#).

Question 6

Do you know how long a design patent lasts and what the maintenance fees are?

Your Response:

No/Not sure

Explanation:

Design patents have a 15-year term from the issue date, as compared to 20 years from the earliest effective filing date for utility patents. No fees are necessary to keep a design patent in force, while utility patents require periodic maintenance fees to keep them in force.

Learn more about the fee schedule at [USPTO fee schedule | USPTO](#).

Question 7

Do you know that a U.S. design patent does not protect your design in any other country?

Your Response:

No/Not sure

Explanation:

Patent protection is territorial, meaning it provides protection only in the country or territory that granted the patent. This means that a U.S. patent only provides protection within the United States and its territories.

Question 8

Are you interested in design protection in other countries?

Your Response:

Yes/Not sure

Explanation:

Since a U.S. patent only provides protection within the U.S. and its territories and you are interested in design protection in other countries, you may want to learn more about the Hague Agreement and the World Intellectual Property Organization (WIPO).

Patent protection is territorial, meaning it only provides protection in the country or territory that granted the patent. However, protection is available outside of the United States via other intellectual property agencies.

The Hague Agreement is a system that streamlines the process by which inventors and businesses can seek protection for up to 100 industrial designs in designated member countries and related organizations (referred to as "Contracting Parties"). Applicants can file a Hague application in a single language either directly with the International Bureau of the World Intellectual Property Organization (WIPO) or indirectly through their Contracting Party. U.S. applicants can file international design applications through the USPTO as an office of indirect filing.

For more information about the Hague Agreement concerning the international registration of design patents (industrial designs), visit our [webpage](#).



Question 1

Have you created a new product that is different from existing products?

Your Response:

No/Not Sure

Explanation:

If you do not know or are not sure if you have created a new product that is different from existing products, the following examples may help you better understand what can be considered a product. A product may include any manufactured article (drug, lotion, furniture, toy, machine, or computer processor) or a composition of matter including biological materials such as a cell, non-human organism, or plant. If you have created any of the above products, consider applying for a utility patent.

Question 2

Have you created a new process or improved an existing process?

Your Response:

No/Not Sure

Explanation:

If you do not know or are not sure whether you have created a new process or improved an existing process, this will help you better understand what can be considered a process.

Examples of a new process include manufacturing a product or providing a service. It could be a method for generating/producing biological matter; synthesizing a drug; building a piece of furniture, a machine, or any other article of manufacture; or developing plants or non-human organisms.

Examples of improving an existing process may include creating a more efficient service, such as in dry cleaning or banking.

So, if you created or improved a process in the manner of these examples, consider applying for a utility patent.

Question 3

Have you discovered a new use for an existing product?

Your Response:

No/Not sure

Explanation:

If you have discovered a new use for an existing product, the existing product cannot be protected by a utility patent. However, the new method of using that product may be patentable. Examples could include discovering that:

- A drug well known for treating one disease is useful in treating another unrelated disease or condition
- An engine developed to power a weed trimmer can also be used to power a scooter
- A pressure-absorbing fabric developed for use on spacesuits can be used to make mattresses

Question 4

Have you ever filed a utility patent application at the USPTO?

Your Response:

No

Explanation:

The USPTO has a variety of online resources available to help you learn about the patent application process before you decide to file your application. The links to those resources are provided at the end of this section.

Question 5

Do you know the difference between a provisional and a nonprovisional utility patent application?

Your Response:

No/Not sure

Explanation:

The following definitions will give you a general understanding of the difference between the two types of patent applications.

A provisional application is a placeholder that gives you one year from the time of filing to decide if you want to file a nonprovisional application. It is not examined and does not result in a utility patent. This is a quick, inexpensive way for inventors to establish a U.S. filing date for their invention that can be applied to a timely filed nonprovisional patent application.

Nonprovisional applications are examined and may result in a utility patent. The claimed invention must be found to be useful, novel, and non-obvious.

A provisional application for a patent is a U.S. national application that is not required to have a formal patent claim or an oath or declaration or any information disclosure (prior art) statement. Provisional applications are not examined. They provide the means to establish an early effective filing date in a later filed nonprovisional application. It also allows applicants to use the term “Patent Pending” in conjunction with the invention when marketing and packaging the claimed invention while the application is pending. Provisional applications cannot be filed for industrial designs.

A nonprovisional utility patent application is examined and may result in a patent if the claimed invention is found to meet the necessary criteria under the law, including being useful, clear, adequately described, novel, and nonobvious. If you want patent protection, a nonprovisional application must be filed as soon as possible or within one year of the filing date of the provisional application. The nonprovisional application must properly claim the benefit of the earlier filing date of the provisional application according to the requirements of 35 U.S.C. 119(e).

In general, patent application serial numbers are assigned chronologically. For more recently filed patent applications, the serial number consists of two parts: the series code and the six-digit serial number. Provisional applications are identified with a number formatted 6X/XXX,XXX.

Question 6

Do you know when you can use “Patent Pending” for your invention?

Your Response:

No

Explanation:

“Patent Pending” means someone has applied for a patent on an invention within the manufactured item. It notifies the public that a patent could be issued in relation to the item. Once you have filed your provisional or non-provisional patent application, you may use “Patent Pending” on or in association with your manufactured item. Once a patent is issued, you may use the patent number instead of “Patent Pending.” Using “Patent Pending” without filing a patent application can result in a fine.

“Patent Pending” serves as a notification to the public that a patent could issue for the item. Once a patent issues, the patent owner will typically start using a phrase such as "Covered by U.S. Patent Number XXXXXXXX." If someone marks upon, or affixes to, or uses in advertising in connection with any item the words "Patent Applied For," "Patent Pending," or any word implying that an application for patent has been made, when no application for patent has been made, or if made, is not pending, and does so for the purpose of deceiving the public, that person can be fined.

Question 7

Do you know that a U.S. patent does not protect your invention in any other country?

Your Response:

Yes

Explanation:

Great! As you know, a U.S. patent does not provide protection outside the U.S.

Patents are territorial rights. In general, patent rights only apply in the country or region where a patent has been granted, in accordance with applicable law. The Patent Cooperation Treaty (PCT) assists inventors seeking international patent protection, helps patent offices in their decision-making, and promotes public access to technical information about the inventions.

By filing one international application under the PCT, inventors can simultaneously seek patent protection in other PCT member states, including the United States. Each national or regional patent office retains control over the granting of patents in what is called the “national phase.”

Question 8

Are you aware of the Patent Cooperation Treaty (PCT) and how it facilitates the filing of patent applications in multiple countries?

Your Response:

No

Explanation:

The PCT streamlines the process by which U.S. inventors and businesses can receive patent protection in other countries. By filing one international patent application, U.S. applicants can concurrently seek protection in the more than 150 current PCT member countries or territories.

The Patent Cooperation Treaty (PCT) assists applicants in seeking international patent protection for their inventions, helps patent offices with their patent-granting decisions, and facilitates public access to a wealth of technical information relating to those inventions. By filing one international patent application under the PCT, inventors can simultaneously seek patent protection for an invention in several countries that are [PCT member states](#). Each national or regional patent office retains control over the granting of patents in what is called the “national phase.” Visit the [PCT Summary for New Users \(wipo.int\)](#) link to learn more about the PCT.

Useful links and resources for protecting your inventions

- Utility patents: [General information concerning patents | USPTO](#) and [Patent process overview | USPTO](#)
- Provisional applications: [Provisional Application for Patent | USPTO](#)
- Nonprovisional utility patent applications: [Nonprovisional \(Utility\) Patent Application Filing Guide | USPTO](#)
- Preparing patent applications: [Patent process overview | USPTO](#)
- U.S. PCT functions: [Patent Cooperation Treaty | USPTO](#)
- World Intellectual Property Organization (WIPO): [PCT Summary for New Users](#)

What's next?

Ready to develop your competitive edge in the marketplace?

Review the [Tips for Managing Your IP](#)

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